

Ramaiah Institute of Technology
(Autonomous Institute, Affiliated to VTU)
Programme: B E – Common to all branches

Term: 3/10/2024 – 25/01/2025

Course: Research Methodology and Intellectual Property Rights

Course Code:AL58 CIE: 5 marks assignment Sem: V Max Marks: 5

Date of submission: _____

Instructions to Candidates: Answer all the questions.

Portions for test: Unit IV

Question Bank

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1	What is IPR? Why is it important in research?	2	4
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1) What is IPR? What is its importance in research?

1) Intellectual property rights refers to legal protection granted to the creators or owners of intellectual property which includes, inventions, literary and artistic works, design, symbols, names, and images used in commerce. IPR enables individual or organization to safeguard their innovation ensuring exclusive rights to use, produce or commercialize their creations.

Importance of IPR in research:

- encourages innovation by ensuring exclusive rights to their discoveries, motivating further innovation.
- Protects original work from unauthorized use or plagiarism of their finding.
- ensures recognition i.e. researchers receive proper credit and acknowledgment for their work, establishing their reputation in the field.
- promotes technology transfer:- IPR facilitates the licensing and sharing of research output enabling their practical application.
- encourages collaboration i.e. secure intellectual property fosters collaboration among academia, industries, etc.

2) List and explain different forms of IPR.

this protects the original Layout and design of integrated circuit. this safeguards the advancement in electronics and semiconductor technologies.

ex: - the Layout design of a microcontroller chip.

3. What are industrial designs? How are they different from patents?

3. Industrial designs protects the visual and aesthetic aspect of a product and is a significant type of IPR. They include shape, pattern, configuration or colour of a product.

Industrial design	Patents.
• focus is on the aesthetic aspect of a product • protects the Look and and feel • It enhances the product's marketability and appeal. • the duration typically vary between 15 to 25 years • ex - shape of a beverage bottle.	• focus is on the functional or technical aspect of an invention • protects the idea, method or functionality • protects the technical innovation and promotes R and D • the duration typically vary for 20 years. • ex:- A new type of engine

4. Describe the process of obtaining patent in India.

4. The process of obtaining a patent in India involves several steps, as defined under the Indian patent Act, 1970.

- Determine Patentability by conducting a patentability search
Assess whether the invention meets the criteria of novelty, non-obviousness and industrial applicability.
- Draft and file a patent application
a provisional application is filed when invention is not completed. It secures a priority date and provides a 12 month duration to file a complete application.
Complete specification is filed when invention is complete and ready for examination.
- After filing the application is published in the patent office Journal within 18 months from the date of filing, this is called the publication of Application
- Request for examination: form 18 is filed to request the examination of patent application. the request must be made within 48 months from date of filing.

- Examination and first examination report - the examiner reviews the application for compliance with patent laws and issues FER. It highlights objection, if any related to novelty, clarity or claims.
- Pre Grant opposition - any third party can file a pre-grant opposition on various grounds, such as lack of novelty or prior art. The applicant then defends the invention.
- Grant of patent - if the application satisfies all requirement and objections are resolved the patent is granted. The details of the granted patent are published in the patent office journal.
- Post grant opposition - a post opposition can be filed by a third party within 12 month of the grant.
- Maintenance of the patent
annual renewal fees must be paid from the 3rd onward to keep the patent in force. The patent remains valid for 20 years from date of filing.

5) What is the TRIPS agreement of 1994? What are the benefits of this agreement?

6) The TRIPS (Trade Related Aspect of Intellectual Property Rights), is an international legal agreement administered by the World Trade Organization. It

establishes minimum standards for the protection and enforcement of intellectual property rights globally.

Benefits of TRIPS Agreement.

for countries

- 1) Harmonization of IPR Laws: establishes a uniform framework of IPR protection facilitating global trade and reducing disputes between countries.
- 2) encourages foreign investment: Strong IPR protection attract multinational companies and foreign direct investment (FDI)
- 3) technology transfer
Companies are more likely to share advanced technology with countries which offer robust IPR protection.

for societies

Improved access to innovation: encourage the creation and dissemination of new technologies, benefiting industries and consumers.

protecting copyrights promotes the production of cultural works like music, films, books, contributing to cultural economy.